

No. 09-996

**In The
Supreme Court of the United States**

—◆—
JAMES WALKER, WARDEN, et al.,

Petitioners,

vs.

CHARLES W. MARTIN,

Respondent.

—◆—
**On Writ Of Certiorari To The
United States Court Of Appeals
For The Ninth Circuit**

—◆—
**BRIEF AMICUS CURIAE OF THE
HABEAS CORPUS RESOURCE CENTER
IN SUPPORT OF RESPONDENT**

—◆—
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QUESTION PRESENTED

Whether a state-court practice of determining the timeliness of habeas corpus petitions on a case-by-case basis, with no established rules or principles for deciding either when a petition is untimely or whether its untimeliness will be excused – a practice that has resulted in the inconsistent treatment of similarly situated habeas corpus petitioners – constitutes an “adequate” state procedural ground for extinguishing a federal constitutional claim.

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INTEREST OF *AMICUS CURIAE*¹

The Habeas Corpus Resource Center (“HCRC”) is an entity in the Judicial Branch of the State of California responsible for representing indigent California capital petitioners in state and federal habeas corpus proceedings. *See* Cal. Senate Bill 513 (Ch. 869, 1998 Cal. Stat.). Since 1999, the HCRC has accepted appointments by the California Supreme Court and the federal courts in ninety-six cases and has recruited and trained private counsel in capital habeas corpus proceedings and served as a resource to these attorneys. In the capacity of providing direct representation and as a resource center, the HCRC has developed particular expertise in the habeas corpus issues currently before this Court and has an interest in ensuring that California habeas corpus petitioners are not deprived of federal review of potentially meritorious claims as a result of the State’s invocation of a procedural bar that is neither clearly defined nor regularly applied.



¹ Pursuant to United States Supreme Court Rule 37.3(a), this brief is accompanied by the written consent of the parties. *Amicus Curiae* attests that no counsel for a party authored this brief in whole or in part and no counsel, party, or other individual or entity other than *Amicus Curiae* has made monetary contributions toward the preparation or submission of this brief.

SUMMARY OF ARGUMENT

This Court requires that state procedural rules be firmly established and regularly applied before they constitute an adequate state ground that may preclude federal review of claims arising under the United States Constitution. *See, e.g., Beard v. Kindler*, ___ U.S. ___, 130 S. Ct. 612, 617-18 (2009). The Court’s requirement of regular application of a state procedural rule is designed to prevent discrimination against federal interests, ensure even-handed protection of federal rights, and provide notice to petitioners of its terms and requirements. *See, e.g., Lee v. Kemna*, 534 U.S. 362, 388, 389 (2002) (Kennedy, J., dissenting); *Hathorn v. Lovorn*, 457 U.S. 255, 263 (1982). The Ninth Circuit Court of Appeals correctly inquired into the adequacy of California’s timeliness bar pursuant to this requirement, and its ruling appropriately reflects the obligation of the federal courts to review constitutional claims of state prisoners in the context of a timeliness bar that has been deemed by justices of the California Supreme Court to be “indeterminate at [its] very core,” *In re Robbins*, 18 Cal. 4th 770, 817 n.3, 959 P.2d 311 (1998) (Mosk, J., concurring), and so “amorphous” as to fail to provide any meaningful guidance to petitioners, *In re Gallego*, 18 Cal. 4th 825, 849, 959 P.2d 290 (1998) (Brown, J., concurring in part and dissenting in part).

California’s timeliness rule is unlike any other state’s rule because it fails to specify a starting date for the limitations period, lacks a definite filing deadline, and fails to provide any criteria for

determining what constitutes – or may excuse – “delay.” Moreover, the vast majority of decisions imposing a timeliness bar or excusing delay in California are unpublished, unexplained summary orders that are unavailable to incarcerated petitioners. The indeterminate nature of the timeliness rule and the dearth of published opinions by the California Supreme Court and lower appellate courts demonstrating its application result in highly inconsistent imposition of the bar among similarly situated non-capital habeas petitioners, arbitrary discrimination against federal claims, and a rule that does not fairly apprise petitioners of its requirements.

An empirical analysis of the unpublished summary denials confirms that, in practice, application of California’s timeliness bar results in “arbitrary and capricious decisions.” *In re Sanders*, 21 Cal. 4th 697, 726, 981 P.2d 1038 (1999) (Mosk, J., concurring). A sample consisting of the 157 habeas corpus petitions the California Supreme Court denied on the same day as Mr. Martin’s petition reveals that, controlling for various factors such as the length of delay, the type of claim raised, and the type of justification offered to explain any delay, there was no regular, even-handed application of the timeliness bar, and thus no principled way of distinguishing among many of the cases denied solely on the merits despite lengthy delays and those with similar or shorter delays that were denied as untimely.

The Ninth Circuit correctly determined that California’s timeliness bar was inadequate to bar

federal review at the time it was applied to default Mr. Martin's constitutional claims. Because information about the application of the timeliness bar in the vast majority of California habeas cases is unavailable to petitioners, the ultimate burden of demonstrating its regular application properly is allocated to the State.



ARGUMENT

I. CALIFORNIA LAW DOES NOT APPRISE HABEAS CORPUS PETITIONERS OF WHAT CONSTITUTES IMPERMISSIBLE DELAY OR PROVIDE GUIDANCE TO PERMIT CONSISTENT APPLICATION OF THE STATE'S TIMELINESS BAR.

A state procedural rule is firmly established when a petitioner could "fairly be deemed to have been apprised of its existence." *NAACP v. Alabama ex rel. Patterson*, 357 U.S. 449, 457 (1958). Regular application of a state rule serves to provide such notice to petitioners, as well as courts, while ensuring that state rulings "do not discriminate against federal rights." *Lee v. Kemna*, 534 U.S. at 388 (Kennedy, J., dissenting); *see also Ford v. Georgia*, 498 U.S. 411, 423 (1991) ("justified reliance upon prior decisions" or "a consistent pattern of procedures," may establish state procedural rules) (internal quotation omitted); *Murray v. Carrier*, 477 U.S. 478, 512 & n.18 (1986)

(a federal court’s discretion to deny relief on the basis of state procedural default is “[n]arrowly circumscribed, in conformity to the historical role of the writ of habeas corpus as an effective and imperative remedy for detentions contrary to fundamental law”) (internal quotation omitted). California’s timeliness bar in non-capital cases accomplishes neither of these critical functions.

California’s timeliness bar is indeterminate, without specific triggering dates or ascertainable filing deadlines. Moreover, the California Supreme Court’s decisions and its published policies addressing the timeliness bar do not provide even basic notice of timeliness requirements to prospective habeas corpus petitioners and reviewing courts. This wholly undefined approach to time limits for the filing of habeas corpus petitions is unlike any of the other forty-nine states.

A. California Law And Supreme Court Policies.

In 1949, the California Supreme Court stated, without further explanation, that its practice in reviewing habeas corpus petitions was “to require that one who belatedly presents a collateral attack . . . explain the delay in raising the question.” *In re Swain*, 34 Cal. 2d 300, 302, 209 P.2d 793 (1949). Subsequent case law established that “delay” was to be measured from the time a petitioner became aware of the grounds for relief. *See, e.g., In re Wells*, 67 Cal.

2d 873, 875, 434 P.2d 613 (1967). For claims filed after “substantial” delay, a petitioner was required to “point to particular circumstances to justify” that delay. *In re Stankewitz*, 40 Cal. 3d 391, 397 n.1, 708 P.2d 1260 (1985). Aside from these cases establishing minimal contours of the timeliness rule, the California Supreme Court has issued only a small number of opinions and failed to explain the parameters of the timeliness bar or provide meaningful guidance to potential petitioners or reviewing courts.²

In a News Release issued in June 1989, the California Supreme Court announced new “Policies” to guide the filing of habeas corpus petitions in capital cases, including a policy that created a presumption of timeliness for newer capital cases and expressly incorporated the existing “substantial delay” rule from prior case law. *See* News Release 40: Supreme Court Policies Regarding Cases Arising From Judgments Of Death, Policy 3, Standard 1-1.1 (June 6, 1989), *available at* <http://www.hcrc.ca.gov/walker.php> (last visited Oct. 25, 2010). The Policies explained that a petitioner may “establish good cause [for the delay] by showing particular circumstances

² *See, e.g., People v. Jackson*, 10 Cal. 3d 265, 268-69, 514 P.2d 1222 (1973); *In re Saunders*, 2 Cal. 3d 1033, 1040, 472 P.2d 921 (1970); *In re Huddleston*, 71 Cal. 2d 1031, 1034, 458 P.2d 507 (1969); *In re Streeter*, 66 Cal. 2d 47, 52, 423 P.2d 976 (1967); *In re Perez*, 65 Cal. 2d 224, 228, 418 P.2d 6 (1966).

sufficient to justify substantial delay.” *Id.* at Policy 3, Standard 1-2.³ Because the presumption of timeliness applied only to capital petitioners and the “Policies” merely incorporated the existing substantial delay and good cause standards, they did nothing to clarify the timeliness bar for non-capital petitioners or remedy its inconsistent application up to that point. *See In re Clark*, 5 Cal. 4th 750, 802, 855 P.2d 729 (1993) (Mosk, J., concurring in part and dissenting in part) (noting that “[r]egularity and consistency” in the application of the timeliness rule “were not evident” prior to *Clark*).

Following the announcement of the “Policies,” the court issued a handful of opinions in capital cases discussing the timeliness bar. In *In re Clark*, the California Supreme Court affirmed the timeliness standard enunciated in *Swain* and subsequent cases, adding that courts should consider whether newly developed facts could have been discovered earlier, rather than simply evaluating whether the facts were presented promptly following discovery. 5 Cal. 4th at 774-75, 779. Although it did not establish specific

³ In the original 1989 version of the Policies, the presumption of timeliness attached only to petitions filed within sixty days after the final due date for the direct appeal reply brief. News Release 40: Supreme Court Policies Regarding Cases Arising From Judgments Of Death, Policy 3, Standard 1-1.1 (June 6, 1989). *See also* Supreme Court Policies Regarding Cases Arising From Judgments Of Death, Policy 3, *available at* <http://www.courtinfo.ca.gov/courts/supreme/aa02f.pdf> (last visited Oct. 25, 2010).

triggering dates for calculating delay, the California Supreme Court noted generally that “[d]elay in seeking habeas corpus or other collateral relief has been measured from the time a petitioner becomes aware of the grounds on which he seeks relief. That time may be as early as the date of conviction.” *Id.* at 765 n.5 (citations omitted).⁴ Ultimately, however, nothing in the *Clark* decision addressed the lack of clarity in California’s timeliness rule or the absence of guidelines to ensure its regular and consistent application, features of the rule that the court itself recognized as the pre-existing state of affairs. *Id.* at 763 (noting that “no clear guidelines have emerged in our past cases”).

Subsequent California Supreme Court decisions similarly failed to clarify the meaning of “substantial delay” or demonstrate in practice how the timeliness rule should be applied. In *In re Robbins*, another capital case, the court purported to “describe in greater detail . . . the basic analytical framework governing our timeliness determination” but then merely stated that facts to demonstrate timeliness must be pled with specificity and that, in capital cases at least, an ongoing investigation into potentially meritorious claims may establish good cause for substantial delay. 18 Cal. 4th at 780. In a concurring opinion, Justice Mosk implicitly acknowledged the

⁴ *Clark* also announced exceptions to the timeliness rule in circumstances in which the petitioner alleges facts establishing a “fundamental miscarriage of justice.” 5 Cal. 4th at 797-98.

absence of criteria for the application of the timeliness bar, observing that “[t]he procedural bar of untimeliness is indeterminate at [its] very core. . . . Of course, its application to any given claim may yield varying results, as reasonable persons differ as to whether the claim in question has been presented without ‘substantial delay’ and, if not, whether ‘good cause’ exists for any such delay.” *Id.* at 817 n.3 (Mosk, J., concurring) (internal quotation omitted).

In *In re Gallego*, also a capital case, the California Supreme Court explained that one of the thirty-five claims raised in the petition was timely because the court previously had denied a request for funds to develop the claim. 18 Cal. 4th at 828-29. This ruling was largely inapplicable to non-capital petitioners, who do not receive funding for investigation.⁵ In an opinion concurring in part and dissenting in part, Justice Brown observed in *Gallego* that California’s timeliness standards were “impossibly amorphous” and found that the California Supreme Court’s explanations in *Clark*, *Robbins*, and *Gallego* were “nebulous as well as riddled with exceptions requiring fact-specific analysis.” *Id.* at 849 (Brown, J., concurring in part and dissenting in part). After a

⁵ The California Supreme Court Policies Regarding Cases Arising from Judgments of Death, Policy 2-2.1, authorizing limited funds for investigation by habeas counsel in death penalty cases, does not apply to non-capital habeas petitioners, and counsel representing a non-capital habeas petitioner is not obligated to conduct any investigation. See *In re Clark*, 5 Cal. 4th at 783 & 784 n.20.

detailed examination of the decision in *Clark*, Justice Brown concluded that its “imprecise, circular, and tautological language does not define a ‘clear’ rule this court can ‘consistently appl[y]’ to create a ‘well-established’ standard. . . . Nor does it even provide guidance.” *Id.* at 850 (citation omitted).

Finally, in another capital case, *In re Sanders*, the California Supreme Court considered whether good cause to justify delay is established where “an attorney representing a capital defendant essentially abandons his client.” 21 Cal. 4th at 701. A fractured court provided various reasons why it found the petition to be timely. In a dissenting opinion, the author of the *Clark* decision declared that *Sanders* “contradict[ed]” the court’s timeliness rule. *Id.* at 730 (Baxter, J., dissenting). In a concurring opinion, joined by Chief Justice George and one other justice, Justice Mosk concluded that “in spite of the best and most honest efforts,” the result of the timeliness bar “is, and will continue to be arbitrary and capricious decisionmaking and arbitrary and capricious decisions.” *Id.* at 726 (Mosk, J., concurring).⁶

⁶ Perhaps in an effort to provide some contours to the “amorphous” terms of the timeliness rule, the California Supreme Court recently issued an Order to Show Cause in *In re Reno*, S124660, to address the application of multiple procedural bars, including the timeliness rule. See http://appellatecases.courtinfo.ca.gov/search/case/mainCaseScreen.cfm?dist=0&doc_id=1856339&doc_no=S124660 (last visited Oct. 25, 2010).

These four internally contradictory cases regarding the application of the timeliness bar in capital cases do not provide non-capital petitioners with even basic notice of what length of delay may be considered “substantial” or criteria for determining whether there is cause to excuse such delay. Not surprisingly, this lack of guidance from the California Supreme Court has resulted in the absence of published decisions by the California Courts of Appeal on the issue. As discussed in Section II, *infra*, the California Supreme Court’s actual practice in applying the timeliness bar in unpublished summary denials further confirms that the undefined rule results in very inconsistent application of the procedural default.

This Court previously has recognized that California’s indeterminate timeliness rule also makes it difficult for federal courts to determine when a habeas corpus petition is untimely according to California law. *See Evans v. Chavis*, 546 U.S. 189, 198-99 (2006) (“[g]iven the uncertain scope of California’s ‘reasonable time’ standard, it may not be easy for the Circuit to decide . . . whether the prisoners’ state-court review petition was timely”); *Carey v. Saffold*, 536 U.S. 214, 223 (2002) (stating that California’s standard may make it more difficult for federal courts to determine when a review application comes too late). In order to alleviate this problem, this Court suggested that the California courts could clarify the scope of their standard or the California Legislature could impose more determinate time limits, “conforming California law in this respect with the law of most

other States.” *Evans*, 546 U.S. at 199-200. Thus far, neither the California Supreme Court nor the California Legislature has acted upon this Court’s suggestion.

B. Other States’ Requirements For Timely Filing Of Habeas Corpus Petitions.

California’s timeliness rule for non-capital habeas corpus petitions is unlike that of the other forty-nine states and the District of Columbia, which either require a petitioner to file a post-conviction petition within a determinate time period or have no statute of limitation for post-conviction review. Notably, California also is the only state with a timeliness rule that has not been codified by statute or rule of court. Thirty-three states have, by statute or rule of court, fixed deadlines for filing for post-conviction relief in non-capital cases, while the remaining sixteen states and the District of Columbia have no such time limit. The most common deadline requires the filing of a petition within one year of the date upon which a petitioner’s conviction becomes final on direct review, a time limit found in thirteen states.⁷ Four states

⁷ Ala. R. Crim. Proc. 32.2(c) (West 2010); Del. Super. Ct. Crim. R. 61(i)(1) (West 2010); Idaho Code Ann. § 19-4902(a) (West 2010); Kan. Stat. Ann. § 60-1507(f)(1) (West 2010); 15 Me. Rev. Stat. Ann. § 2128(5) (West 2010); Mont. Code Ann. § 46-21-102(1) (West 2010); Nev. Rev. Stat. Ann. § 34.726(1) (West 2010); 42 Pa. Cons. Stat. Ann. § 9545(b)(1) (West 2010); S.C. Code Ann. § 17-27-45(A) (2009); Tenn. Code Ann. § 40-30-102(a) (West 2010); Utah Stat. Ann. § 78B-9-107(1) (West 2010); Va. Code

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allow a petition to be filed within two years of a final conviction⁸ and another four states allow filing within three years of that date.⁹ Twelve of the remaining states provide fixed time limits, varying from thirty days to ten years past a date certain.¹⁰ Sixteen states and the District of Columbia have no time limit for seeking post-conviction relief.¹¹

Ann. § 8.01-654(A)(2) (West 2010); Wash. Rev. Code § 10.73.090(1) (West 2010).

⁸ Fla. R. Crim. Pro. 3.850(b) (West 2010); La. Code Crim. Proc. § 930.8(a) (West 2010); Minn. Stat. Ann. § 590.01(4)(a) (West 2010); Or. Rev. Stat. Ann. § 138.510(3) (West 2010).

⁹ Colo. Rev. Stats. Ann. § 16-5-402(1) (West 2010); Iowa Code Ann. § 822.3 (West 2010); Ky. R. Crim. Proc. 11.42(10) (West 2010); Miss. Code Ann. § 99-39-5(2) (West 2010).

¹⁰ Alaska Stat. Ann. § 12.72.020(a)(3)(A) (West 2010); 16 Ariz. R. Crim. Pro. 32.4(c)(2) (within sixty days of counsel being appointed); Ark. R. Crim. Pro. 37.2(c) (West 2010); Ga. Code Ann. § 9-14-42(c) (2010); 725 Ill. Comp. Stats. Ann. § 5/122-1(c) (West 2010); Md. Code Ann., Crim. Pro. § 7-103(b) (West 2010); Mo. S. Ct. R. 29.15(b) (West 2010); N.J. R. of Ct. 7:10-2(b); Ohio Rev. Code § 2953.21(A)(2) (West 2010); 22 Okla. Stat. Ann. § 1089(D) (West 2010); Tex. Code Crim. Proc. art. 11.071(4)(a) (Vernon 2010); Wyo. Stat. Ann. § 7-14-103(d) (West 2010).

¹¹ Conn. Gen. Stat. Ann. § 52-466 (West 2010), *see also* *Summerville v. Warden*, 229 Conn. 397, 426-27, 641 A.2d 1356 (1994); Haw. R. Penal Proc. 40(a)(1) (West 2010); Ind. R. Proc. for Post-Conviction Remedies 1(1) (West 2010); Mass. R. of Crim. Proc. 30 (West 2010); Mich. Comp. Laws Ann. § 6.508 (West 2010); Neb. Rev. Stat. Ann. § 29-3001 (West 2010); N.H. Rev. Stat. Ann. § 534:1 (West 2010); N.M. R. Dist. Ct. 5-802 (West 2010); *People v. Richetti*, 302 N.Y. 290, 298, 97 N.E.2d 908 (1951); N.C. Gen. Stat. Ann. § 15A-1415(a) (West 2010); N.D. Cent. Code § 29-32.1-03(2) (2010); R.I. Gen. Laws § 10-9.1-3 (2010); S.D. Codified Laws § 21-27-3.1 (2010); Vt. Stat. Ann. tit.

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Furthermore, in states in which the courts exercise discretion to grant or deny post-conviction petitions, the discretion lies in excusing delay after an express deadline has expired. For example, Kentucky courts may allow a petitioner to file a claim after the three-year limitation has passed if he or she exercised “due diligence” in presenting the claim.¹² Illinois courts may allow a petitioner to file beyond the state’s three-year time limit if there is no “culpable negligence” in his or her delay.¹³ The one-year time limit in Kansas may be extended by a court to prevent a “manifest injustice.”¹⁴ Colorado law provides that courts may excuse delay beyond the state’s strict time limits if the petition shows “justifiable excuse or excusable neglect.”¹⁵

Without a codified statute or rule of court to explain time limitations and clearly apprise petitioners of the requirements for timely filing, and in the absence of judicial construction or other published rulings exemplifying application, it is all the more likely that California’s timeliness bar will be applied inconsistently and arbitrarily. *See, e.g., Missouri v. Jenkins*, 495 U.S. 33, 50 (1990) (recognizing risk that

13 § 7131 (2010); Wash. D.C. Code § 23-110 (2010); W. Va. Code Ann. § 53-4A-1 (West 2010); Wis. Stat. Ann. § 974.06 (West 2010).

¹² Ky. R. Crim. Proc. 11.42(10)(a), (b) (West 2010).

¹³ 725 Ill. Comp. Stats. Ann. § 5/122-1(c) (West 2010).

¹⁴ Kan. Stat. Ann. § 60-1507(f)(1) (West 2010).

¹⁵ Colo. Rev. Stats. Ann. § 16-5-402(2)(d) (West 2010).

reliance on unpublished procedural rules may result in disparate treatment of similar cases; stating that “published rules of procedure [give] parties fair warning” and “[r]egular adherence to published rules of procedure best promotes the principles of fairness, stability, and uniformity that those rules are designed to advance”); *NAACP v. Alabama ex rel. Flowers*, 377 U.S. 288, 295, 301 (1964) (holding state procedural ruling inadequate where the state court placed no reliance on existing rules of court and instead refused to entertain federal claims on the basis of state court decisions that addressed a different situation than the one at bar). Indeed, California’s practice demonstrates just such inconsistent and arbitrary application of its amorphous timeliness default rule and further confirms that there is no “firmly established and regularly followed state practice” that is adequate to bar federal review. *James v. Kentucky*, 466 U.S. 341, 348-49 (1984).

II. THE CALIFORNIA SUPREME COURT'S ACTUAL PRACTICE IN APPLYING THE STATE TIMELINESS BAR DOES NOT ESTABLISH CRITERIA FOR IDENTIFYING OR JUSTIFYING SUBSTANTIAL DELAY AND IS HIGHLY INCONSISTENT AMONG SIMILAR CASES.

A. *Amicus Curiae* Utilized a Reasonable Methodology To Assess The California Supreme Court's Actual Practice In Applying The Timeliness Bar.

In the absence of California Supreme Court decisions defining the terms of California's timeliness rule in non-capital cases, *Amicus Curiae* conducted a study to determine whether (1) the California Supreme Court's actual practice in deciding habeas corpus cases provided petitioners with notice as to which petitions would be deemed timely filed and which would not; and (2) California's timeliness bar was regularly applied at the time the California Supreme Court denied Mr. Martin's petition. *See, e.g., Williams v. Georgia*, 349 U.S. 375, 383-84 (1955) (in determining that discretionary state procedural rule was not adequate to bar federal review, the Court analyzed state court practice and ruled that "[a] state court may not, in the exercise of its discretion, decline to entertain a constitutional claim while passing upon kindred issues raised in the same manner"). The study consisted of an empirical analysis of all habeas corpus cases that the California Supreme Court decided on September 11, 2002, the same day that

court denied Mr. Martin’s state habeas corpus petition.¹⁶

To accomplish its review, *Amicus Curiae* first obtained from the California Supreme Court Clerk’s Office a list of all orders in habeas corpus cases issued on September 11, 2002.¹⁷ *Amicus Curiae* then requested the files for these cases from the court’s archives and conducted an exhaustive analysis of the habeas corpus petitions and the court’s resolution of the cases.¹⁸ *Amicus Curiae*’s focus on California Supreme Court orders reflects its effort to minimize the inconsistency that would appear in a broader sample; by analyzing only California Supreme Court practice and excluding cases decided in the California Courts of Appeal and Superior Courts, *Amicus Curiae* limited its sample to cases decided by the same court

¹⁶ The court files for the cases analyzed in this study are available at <http://www.hcrc.ca.gov/walker.php> (last visited Oct. 25, 2010).

¹⁷ The complete text of the orders is not available on Westlaw or Lexis and is not published on the court’s website.

¹⁸ Given this cumbersome process, few – if any – habeas petitioners would be able to review the California Supreme Court’s actual decisions in other habeas cases to ascertain what constitutes “substantial delay” or what kind of justification may be required to excuse any delay. See, e.g., *Mullane v. Central Hanover Bank & Trust*, 339 U.S. 306, 314 (1950) (due process requires that notice “be of such nature as reasonably to convey the required information”); see also *Johnson v. Mississippi*, 486 U.S. 578, 587 (1988) (relying on the weight of published decisional law to determine how state procedural rules are regularly applied); *James v. Kentucky*, 466 U.S. at 346-48 (same).

personnel and staff that were involved in deciding Mr. Martin's case.¹⁹

On September 11, 2002, the California Supreme Court issued orders in 157 habeas corpus cases, denying relief in all of the cases. *Amicus Curiae* first evaluated this sample to identify cases that had been decided on the merits compared to cases denied because of state procedural defaults. Of the 157 cases, *Amicus Curiae* characterized ninety-five cases as denied on the merits and sixty-two cases as procedurally defaulted, whether untimely or with citations indicating other procedural bars. *See In re Robbins*, 18 Cal. 4th at 814 n.34 (explaining the state supreme court's citation practice). Of the ninety-five merits cases, seven involved denials of a petition for review following the California Court of Appeal's denial of habeas relief.²⁰ The remaining merits cases and sixty

¹⁹ This Court has emphasized that an adequacy inquiry must focus on the nature of state law and its application at the time of the procedural default. *See Ford v. Georgia*, 498 U.S. at 424; *see also Valerio v. Crawford*, 306 F.3d 742, 776 (9th Cir. 2002) (explaining that default occurs for purposes of assessing adequacy of a state procedural rule barring successive petitions at the time petitioner filed his first petition, not when the procedural bar was actually imposed). *Amicus Curiae*, however, is unable to determine when Mr. Martin's purported default occurred because the California Supreme Court's order does not explain when Mr. Martin should have filed his habeas corpus petition.

²⁰ In California, the state supreme court, intermediate courts of appeal, and superior courts all have original habeas corpus jurisdiction. Cal. Const., art. VI, § 10. Although a superior court order denying habeas corpus relief is non-appealable, a

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of the procedurally defaulted cases were resolved by “postcard” denials of original habeas petitions filed in the California Supreme Court between July 20, 2001, and August 19, 2002.²¹ The ninety-five merits denials stated only that the “Petition for writ of habeas corpus is DENIED” and did not include any citation to case law. *See Harris v. Super. Ct.*, 500 F.2d 1124, 1128 (9th Cir. 1974) (holding that California Supreme Court’s denial of a habeas petition without opinion or citation to authority constitutes a decision on the merits). Two additional cases were dismissed with identical language as these merits cases, but because they were denied in the lower courts on procedural grounds and could be subject to the “look through” doctrine, they were included among the procedurally defaulted cases.²²

state prisoner may file a new habeas corpus petition in the court of appeal. *See, e.g., In re Reed*, 33 Cal. 3d 914, 918 n.2, 663 P.2d 216 (1983), *overruled on other grounds by In re Alva*, 33 Cal. 4th 254, 92 P.3d 311 (2004). If the court of appeal denies relief, the petitioner may seek review in the California Supreme Court by way of a petition for review, or may instead file an original habeas petition in the state supreme court. Cal. R. Ct. 28 (West 2002); *see also* Cal. R. Ct. 8.500 (West 2010) (recodifying Cal. R. Ct. 28); *Redd v. McGrath*, 343 F.3d 1077, 1080 n.2 (9th Cir. 2003).

²¹ “Postcard” denials are unpublished, unexplained orders that may or may not contain citations to California Supreme Court case law. *See Harris v. Super. Ct.*, 500 F.2d 1124, 1127-28 (9th Cir. 1974) (en banc).

²² *In re Marvin McCarthy*, S104764, and *In re Danny Ray Cameron*, S107202, both had reasoned lower court opinions denying as untimely habeas claims identical to the ones raised in the California Supreme Court. Pursuant to this Court’s

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Amicus Curiae next evaluated the sixty-two procedurally defaulted cases to determine which involved a timeliness bar. Only twenty-two of these sixty-two cases indicated a timeliness bar by a citation to *In re Clark*, 5 Cal. 4th 750, 855 P.2d 729 (1993), and *In re Robbins*, 18 Cal. 4th 770, 780, 959 P.2d 311 (1998), or to *Robbins* only.²³ Mr. Martin's case was in this group, and the order denying his petition reads in its entirety: "Petition for writ of habeas corpus is DENIED. (See *In re Clark* (1993) 5 Cal. 4th 750; *In re Robbins* (1998) 18 Cal. 4th 770, 780.)." See *In re Charles Martin*, Case No. S105308, available at <http://www.hcrc.ca.gov/walker.php> (last visited Oct. 25, 2010). Although the court did not state that the timeliness bar was the basis for its denial in Mr.

decision in *Ylst v. Nunnemaker*, 501 U.S. 797, 803-04 (1991), requiring federal courts to "look through" to the "last reasoned decision" to ascertain the ground for the silent denial, *Amicus Curiae* included these among the cases as a denial on timeliness grounds despite the lack of any citation or explanation by the California Supreme Court.

²³ *In re Thomas Gene Mayfield*, S104162; *In re Dana Page*, S104400; *In re Kevin Johnson*, S104783; *In re Jose Francisco Reyes*, S104915; *In re Kenneth Glover*, S105198; *In re Marvin Jar Dominguez*, S105201; *In re Charles Martin*, S105308; *In re Walter Scherbovitsch*, S105356; *In re Lonnie P. Gray*, S105396; *In re Lori Bartz*, S105429; *In re Stanford Bryant*, S105477; *In re Douglas James*, S105531; *In re Juan A. Portillo*, S106238; *In re Derrick Moses*, S106433; *In re Gregory Whitson*, S106521; *In re Alfredrick Love*, S106541; *In re Terry Evans*, S106811; *In re Charles A. Banning*, S106871; *In re Damon Lamar Foster*, S106872; *In re Charles Fordjour*, S106926; *In re Willie Tyrone Cooper*, S107150; *In re Bruce Senator*, S107861.

Martin’s case or the other twenty-one cases with citations to *Clark* and/or *Robbins*, *Amicus Curiae* assumes that the *Clark* and *Robbins* citations were intended to convey the court’s determination that the petitions were untimely.

Of the remaining forty cases involving state procedural defaults, ten were denied with a citation to “*In re Clark*, 5 Cal. 4th 750,” which also addresses a bar on successive petitions, or to *Clark* and other cases involving procedural bars other than timeliness.²⁴ The procedural histories of these ten cases indicate that the *Clark* citation likely signified an invocation of the bar against successive petitions; however, the citation provides no guidance as to which of *Clark*’s procedural bars the court intended to impose. Nonetheless, because a denial on timeliness grounds could not be ruled out in these cases, *Amicus Curiae* included these cases in the portion of the sample it identified as arguably untimely. Combining these cases with the *Clark/Robbins* denials and the two “look through” cases resulted in a total of thirty-four cases involving the state timeliness bar.

²⁴ *In re Jerry B. Nutt*, S104926; *In re Merrick Jose Moore*, S104930; *In re Journey Rodriguez*, S105158; *In re Anthony Smith*, S105887; *In re Henry Holmes*, S106154; *In re Edward Thomas*, S107031; *In re Nigel Donovan Moore*, S107200; *In re Stafford Davis*, S107324; *In re Henry Holmes*, S106229; *In re Kevin Eley*, S107165.

B. The California Supreme Court’s Actual Practice In Applying The Timeliness Bar Demonstrates That The Bar Is Not Regularly Applied.

To assess whether the timeliness bar was regularly applied across the sample, *Amicus Curiae* first analyzed the length of time it took each of the 157 petitioners to raise their claims in the California Supreme Court or, if identical claims were raised in the Superior Court or the Court of Appeal, how long it took to first present the claims in a lower court. *See, e.g., Johnson v. Mississippi*, 486 U.S. at 587 (a state procedural rule must be “consistently or regularly applied” in similar cases before it is adequate to bar federal review). Because California’s timeliness bar is indeterminate and does not begin to run from a specified date or point in the proceedings, an initial challenge in determining the amount of delay involved in each of the 157 cases was ascertaining the appropriate point from which to begin measuring delay.

Under California’s timeliness rules, “delay” is measured from the time a petitioner became aware of the grounds on which he or she seeks relief. *See In re Robbins*, 18 Cal. 4th at 780 (“Substantial delay is measured from the time the petitioner or his or her counsel knew, or reasonably should have known, of the information offered in support of the claim and the legal basis for the claim.”). Thus, for challenges to a conviction or sentence discernable from the trial record, the starting point for measuring delay “may

be as early as the date of conviction” rather than the finality of the conviction. *In re Clark*, 5 Cal. 4th at 782-83. The sample of 157 cases decided on September 11, 2002, however, provided no clue as to whether the California Supreme Court evaluated timeliness based on delay from finality of conviction, as *Amicus Curiae* Criminal Justice Legal Foundation asserts (see Brief *Amicus Curiae* of the Criminal Justice Legal Foundation in Support of Petitioners at 6), or from the date judgment was entered in the trial court or other possible trigger dates.

Because of this uncertainty in the timeliness rule, *Amicus Curiae* employed four different points from which to calculate periods of potential delay: (1) the finality of the conviction under California law;²⁵

²⁵ Finality of conviction was calculated using the following methodology:

1. In cases where no appeal from the judgment of conviction was taken, the conviction was deemed final sixty days after the date of sentencing because that is when the time for filing a notice of appeal from the rendition of judgment expired. *See* Cal. R. Ct. 30.1 (West 2002); *see also* Cal. R. Ct. 8.308 (West 2010).

2. In cases where an appeal to the intermediate appellate court was filed but review was not sought in the California Supreme Court, the conviction was deemed final forty days from the date the appellate opinion was filed. While such a decision is final thirty days after it is issued, the earliest that the conviction may be deemed final is when the ten-day time period for filing a petition for review in the California Supreme Court expires. *See* Cal. R. Ct. 28 (West 2002); *see also* Cal. R. Ct. 8.500 (West 2010).

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(2) the date of entry of judgment against petitioner in the trial court;²⁶ (3) the date that the alleged unlawful state action occurred that gave rise to a claim that was unrelated to the trial, such as a challenge to a parole decision or prison administrative action; and (4) the date of an intervening event when the claim alleged was based on newly discovered evidence or a change in the law applicable to the petitioner's case. *Amicus Curiae* then compared factors such as the length of delay generally, delay in the context of ineffective assistance of counsel claims (the type of claim defaulted in Mr. Martin's case), and delay in the context of justifications provided for the delay. Finally, *Amicus Curiae* reviewed other cases generally, those in the sample with different claims or delays than Mr. Martin's, to determine whether the California Supreme Court applied the timeliness bar consistently in other types of cases.

3. In cases where a petition for review was filed in the California Supreme Court, the conviction was considered final thirty days from the denial under California law. If the California Supreme Court issued an order to show cause, the conviction became final thirty days after the Supreme Court's final review.

4. In cases where the petitioner filed a petition for certiorari in the United States Supreme Court, the conviction was deemed final on the date the certiorari petition was denied.

²⁶ Although entry of judgment in a criminal case is a separate procedural event from the imposition of sentence, *see* Cal. R. Ct. 8.104(d), both events typically occur during the same proceeding, at the sentencing hearing, *see* Cal. R. Ct. 4.310, 4.470, 4.472. *Amicus Curiae*, therefore, used the sentencing date provided in the habeas petition as the starting point for measuring delay from entry of judgment.

Across all types of comparisons in the sample, *Amicus Curiae* could discern no principled way of distinguishing between habeas corpus cases that were denied as untimely and those that were denied on the merits. The court's orders instead reflect a highly inconsistent and seemingly arbitrary approach to imposition of California's timeliness bar. The results of *Amicus Curiae's* comparisons are discussed in detail below, and also are reflected in the figures contained in the Appendix to this brief.

1. Comparison By Length Of Delay

Among the cases with delays of five to six years from finality of conviction – the length of delay in Mr. Martin's case – sixty-two percent of the cases were denied on the merits and just thirty-eight percent, including Mr. Martin's case, were denied as untimely. *See* Figure 2 at 2a. Furthermore, all of the merits cases within this range were filed after lengthier delay than Mr. Martin's.²⁷ Indeed, more than half of the petitions denied solely on the merits were delayed by one or more years. *See* Figure 1 at 1a (showing forty-eight of eighty-seven cases denied on the merits with a delay greater than one year).²⁸

²⁷ *See In re John W. Fraser*, S108723; *In re James Edward Cooper*, S104853; *In re Jesse Brien Brittain*, S105213; *In re Charles R. Eagan*, S106439; *In re Forrest Lee Jones*, S106922; *In re Alexander Rasin*, S106775.

²⁸ Figure 1 and Figure 2 include 145 of the 157 cases in the study. Four merits cases were excluded from this subset of the
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A comparison of delay measured from the entry of judgment demonstrates similar irregularity.²⁹ Sixty-seven percent of cases delayed from five to six years and fifty percent of cases delayed between six and seven years nonetheless were denied on the merits. See Figure 4 at 4a. Measuring from entry of judgment, Mr. Martin's petition was delayed by approximately six and a half years;³⁰ however, in five cases with greater delays than Mr. Martin's, the California Supreme Court resolved the claims on the merits, without imposing a timeliness bar.³¹ Overall,

sample because no information was available regarding the direct appeal and *Amicus Curiae* therefore was unable to determine the date the conviction was final. Another four merits cases were excluded from this subset because the petitioner filed the habeas corpus petition in the California Supreme Court before finality of conviction. Two cases characterized by *Amicus Curiae* as untimely because they had a citation to *In re Clark* only were excluded because they also were filed before finality of conviction and could not have been considered delayed using finality as the starting measure. Two cases denied on other procedural grounds were omitted either because they were filed before finality of conviction or no information was available to calculate finality of conviction.

²⁹ In cases where only the date of conviction was available, *Amicus Curiae* used that date as the trigger date, with the assumption that conviction and entry of judgment generally occurred close in time.

³⁰ Mr. Martin filed his petition for habeas corpus relief 1,767 days after the judgment against him became final, and 2,373 days after he was sentenced.

³¹ See *In re James Edward Cooper*, S104853; *In re Jesse Brien Brittain*, S105213; *In re Phillip Joseph*, S105440; *In re Charles R. Eagan*, S106439; and *In re Forrest Lee Jones*, S106922.

sixty-nine of the seventy-four merits cases that could be included in this sample were delayed more than one year, and fourteen merits cases were delayed more than five years. *See* Figure 3 at 3a.³² Delay among the all merits denials in this sample ranged from eleven days to over nine years, compared to delays of one year to approximately fifteen years among cases characterized as untimely.³³ *See id.*

A closer comparison of petitions also failed to reveal any meaningful bases for understanding different outcomes among similar cases. For example, in *In re James Edward Cooper*, S104853, the petitioner challenged his three-strikes sentence for petty theft based on intervening Ninth Circuit case law, but

³² Figures 3 and 4 include 129 of the 157 cases in the study. Four merits cases were excluded from this subset of the sample because neither conviction nor sentencing dates were available. Another seventeen merits cases were omitted from this subset because the habeas petitioners challenged state actions that occurred after the entry of judgment, for example, cases that challenged only parole board decisions. Two cases denied with citations to *Clark* and/or *Robbins* were omitted from this subset because the sentencing date could not be determined. Five cases denied on other procedural grounds were excluded from these figures because entry of judgment could not be calculated.

³³ These numbers likely underrepresent the total number of delayed petitions denied solely on the merits. As explained, in footnote 32, *supra*, twenty-one merits cases were excluded from this sample, some of which were substantially delayed. Excluding these cases from the analysis thus underestimates the percentage of cases in which the California Supreme Court did not apply a timeliness bar despite substantial delay in the filing of a petition challenging the criminal judgment.

also raised independent claims of ineffective assistance of trial and appellate counsel, neither of which relied upon the Ninth Circuit’s recent decision. His delay was greater than five years from finality of conviction and six years from the entry of judgment, delay equivalent to that in Mr. Martin’s case. Mr. Cooper attempted to justify his delay in presenting the Eighth Amendment claim by explaining that he only recently had become aware of law that supported his position, but provided no explanation for the long delay in raising the ineffective assistance of counsel claims. Contrary to the disposition of Mr. Martin’s case, however, the California Supreme Court reviewed Mr. Cooper’s petition solely on the merits.

As the foregoing discussion and Figures demonstrate, no general conclusions may be reached about the maximum delay the California Supreme Court would countenance before imposing a timeliness bar.³⁴ The court’s “ad hoc method” of applying the state procedural bar “is antithetical to the doctrinal consistency that is required” for state procedural grounds to preclude federal review of constitutional claims. *Michigan v. Long*, 463 U.S. 1032, 1039 (1983).

³⁴ These findings contradict *Amicus Curiae* Criminal Justice Legal Foundation’s unsupported assertion that “there is no doubt five years after finality on direct review is untimely.” (Brief *Amicus Curiae* of the Criminal Justice Legal Foundation in Support of Petitioners at 6.)

2. Comparison Of Cases Raising Ineffective Assistance Of Counsel Claims

Of the sixty cases in the sample that raised claims of ineffective assistance of trial counsel, thirty-two were denied on the merits, twenty-two (including Mr. Martin's) were denied with a citation to *Clark* and/or *Robbins*, and six were denied on other procedural grounds. See Figure 5 at 5a.³⁵ Notably, in cases with similar delay to Mr. Martin's case, there were virtually equivalent numbers of cases denied on the merits as those denied as untimely. *Id.* (in cases filed between five and six years after finality of conviction, two were decided on the merits and three were denied as untimely); Figure 6 at 6a (in cases with delay from five to six and seven to eight years from entry of judgment, the number of merits denials and timeliness denials were the same).³⁶

These comparisons illustrate that not only has the California Supreme Court reviewed petitions raising similar claims on the merits with delays as

³⁵ Figure 5 reflects only a total of fifty-seven cases because it omits one case, *In re Nemesio Plancarte*, S108210, for which the date of finality of conviction could not be determined and two additional cases, *In re Ronnie Winn*, S108062 and *In re Stanley E. Singleton*, S103819, in which the habeas corpus petition was filed prior to finality of conviction.

³⁶ Figure 6 reflects a total of fifty-nine cases, twenty-one of which were denied with a timeliness citation. The figure omits one case that was denied with a citation to *Clark*, *In re Anthony Smith*, S105887, because the date of entry of judgment could not be determined.

long as five or more years but also has denied petitions as untimely with much shorter delays, with no meaningful method of distinguishing between the two categories. For example, in *In re Thomas Turner*, S107309, the petitioner challenged his conviction for robbery and car-jacking based on ineffective assistance of trial counsel as well as other claims. His petition was delayed over two years from the time of finality of conviction and over four years from the entry of judgment. Like Mr. Martin, Mr. Turner generally asserted that his claims had been raised with due diligence, but, unlike in *In re Martin*, Mr. Turner's petition was denied on the merits. Similarly, in *In re Timothy A. Duke*, S106969, the petitioner challenged his conviction for murder and negligent discharge of a firearm on the grounds of ineffective assistance of trial and appellate counsel, among other claims. His petition was delayed almost four years from the finality of conviction and he provided no explanation for his delay, yet his petition was addressed on the merits.³⁷

In *In re James Hardiman*, S105119, the petitioner challenged his conviction for inflicting corporal injury on a spouse on the grounds of ineffective assistance of trial counsel based on counsel's purported failure to object to the use of a prior conviction at sentencing. Although the petitioner attempted to justify his greater than three-year delay from the

³⁷ The delay from the date of sentencing is not available.

entry of judgment, the justification failed to include any factual details as to why the delay occurred. Nonetheless, the California Supreme Court denied his petition solely on the merits. Comparing these cases to Mr. Martin's, no principled distinction or accurate prediction could be made as to whether a timeliness bar might apply to similar claims raised within a comparable period of delay.

3. Comparison By Type Of Justification Provided For Delay

When the September 11, 2002 cases are compared according to whether the petitioner provided a justification for any potential delay and if so, what type of justification was given, it is apparent that the justifications provided by petitioners whose petitions were denied as untimely were almost identical to those raised in petitions that were denied on the merits. *See* Figures 7 and 8 at 7a-8a.³⁸ Particularly surprising, however, is the fact that fewer of the petitioners whose claims were denied solely on the merits attempted to justify their delay at all, compared to petitioners whose claims were denied as

³⁸ Cases denied on other procedural grounds were not included in this comparison. Several petitioners from each group provided multiple justifications for their delay. Each justification was counted separately in allocating percentages to the types of justifications given, thus the total number of justifications given exceeds the number of petitions, and the Figures reflect distribution by percentage.

untimely. *Compare* Figure 7 at 7a (thirty-six percent of the merits cases did not provide a justification for delay or stated that their claims were being raised without delay) *with* Figure 8 at 8a (seventeen percent of the *Clark/Robbins* denial cases did not provide a justification for delay or stated that their claims were being raised without delay). Forty-two of the ninety-five petitioners whose claims were denied solely on the merits failed to provide justifications for potential delay. Only seven of the thirty-four petitioners whose claims were denied as untimely failed to justify potential delay.

Since petitioners were required to justify substantial delay and it was unknown what length of delay would be considered “substantial” by the California Supreme Court, the failure to provide justifications risked a denial as untimely in most of the cases in the sample. In practice, however, the failure to justify potential delay had little effect on the disposition of the case. Among those petitioners who failed to justify their delay but nevertheless received a merits review, the delays ranged from zero to almost six years. Among the petitioners whose claims were arguably denied as untimely and who did not justify their delay, the delays ranged from zero to almost twelve years.

Among fourteen merits cases that were delayed more than five years from entry of judgment, seven raised claims based on the holding in *Andrade v. Att’y Gen.*, 270 F.3d 743 (9th Cir. 2001), *rev’d by Lockyer v. Andrade*, 538 U.S. 63 (2003), relating to California’s

three-strikes law. In two of these cases, however, the petitioners also brought other claims raising errors relating to the trial that could have been raised much earlier (e.g., ineffective assistance of counsel), yet these claims were also denied solely on the merits.³⁹ In the other five merits denials in which filing was delayed more than five years from judgment and the petitioner claimed a later trigger date based on *Andrade*, the holding in *Andrade* clearly did not apply because that holding was strictly limited to specific facts.⁴⁰ *Andrade*, 270 F.3d at 767.

Moreover, the California Supreme Court did not consistently address petitions raising claims based on *Andrade*, negating any argument that the Court was following an internal policy of considering on the merits all claims allegedly based on new case law or challenging an excessive sentence. For example, in *In re Terry Evans*, S106811, the court denied a petition as untimely despite petitioner specifically citing the holding in *Andrade* as the reason for his delay in filing. In sum, a review of the justifications given by petitioners to explain their delay in raising habeas claims provided no clue as to what kind of

³⁹ *In re James Edward Cooper*, S104853; *In re Jesse Brien Brittain*, S105213.

⁴⁰ *In re Forrest Lee Jones*, S106922; *In re Phillip Joseph*, S105440; *In re Richard Willey Huff*, S106014; *In re Charles R. Eagan*, S106439; *In re Jesse Perez*, S106583.

justification and how much specificity or proof was required to overcome delay.

4. Other Case Comparisons

In addition to the discrepancies between Mr. Martin's case and similarly situated petitioners whose claims were denied on the merits, the sample also showed discrepancies in the manner in which the California Supreme Court treated other cases with similar delays, claims, and justifications. For example, in *In re Danny Ray Cameron*, S107202, petitioner challenged his conviction on the basis of ineffective assistance of trial and appellate counsel, voluntariness of his plea, and due process and equal protection violations. His petition in the Superior Court raising identical claims was delayed more than a year from finality of conviction, and more than two years from sentencing. Mr. Cameron attempted to justify his delay by asserting that the California Department of Corrections deprived him of his trial transcripts and he was a layman at law. Despite the considerable delay and absence of proof to support his justification,⁴¹ the California Supreme Court denied his claims on the merits. Similarly, in *In re Scott G. Mullins*, S107933, petitioner challenged his conviction for first degree murder on the basis of ineffective assistance of counsel. He delayed raising this claim in

⁴¹ See *People v. Duvall*, 9 Cal. 4th 464, 486, 886 P.2d 1252 (1995); *In re Clark*, 5 Cal. 4th at 765.

the Court of Appeal for more than a year from finality of conviction and more than three years from the entry of judgment, but failed to provide any justification for this delay. Nonetheless, the California Supreme Court denied his petition on the merits.

In contrast to these cases reviewed on the merits, in *In re Bruce Senator*, S107861, the California Supreme Court denied as untimely a petition challenging petitioner's sentence and the voluntariness of his plea,⁴² despite a period of delay comparable to the cases just described (over one year from the finality of his conviction and over three years from the entry of judgment), and petitioner's attempts to explain the delay based on prison-related impediments and other grounds. Similarly, in *In re Alfredrick Love*, S106541, petitioner challenged his conviction for attempted burglary and his sentence enhancements under California's three-strikes law, alleging ineffective assistance of counsel and other claims. His petition was delayed over a year from finality of conviction.

⁴² Mr. Senator's case is a further illustration of the California Supreme Court's haphazard application of the timeliness bar. Mr. Senator submitted two petitions to the California Supreme Court, and both were denied on September 11, 2002. His first petition, *In re Bruce Senator*, S107861, referenced above, was denied on timeliness grounds. His second petition, *In re Bruce Senator*, S109129, was filed approximately two months later and raised substantially similar claims. As justifications for delay in both petitions, Mr. Senator pointed to adverse prison conditions. Inexplicably, Mr. Senator's second, later petition was not barred as untimely, but appears to have been denied for failure to exhaust administrative remedies.

Despite the comparable delay and attempts to justify the delay, the California Supreme Court denied his habeas petition as untimely.

These cases cannot be reconciled and provide no guidance as to the court's criteria for imposing the timeliness bar. Furthermore, the habeas pleadings in the sample reflect the uncertainty that petitioners experience when pleading the timeliness of state habeas corpus petitions. In attempting to justify his delay, the petitioner in *In re Alan Oleous Barnes*, S104887, complained that "there are no statutory or other specific time limits for filing a writ of habeas corpus in California Courts." His case was denied in the Superior Court on the basis of untimeliness and for failure adequately to explain delay. Addressing identical claims, the Court of Appeal issued a reasoned opinion citing procedural defaults other than untimeliness, and reached a claim of ineffective assistance of counsel on the merits, while the California Supreme Court denied the petition without any citations, leaving the petitioner entirely without guidance as to whether his petition was delayed or not.



CONCLUSION

The California timeliness rule fails to apprise petitioners of its requirements and is not regularly applied, contrary to this Court's requirement that a state procedural rule be firmly established and

regularly followed. The decision of the Court of Appeals for the Ninth Circuit should be affirmed.

October 2010

Respectfully submitted,

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Figure 1. Length of Delay and Outcomes by Year from Finality Of Conviction
Number Of Cases

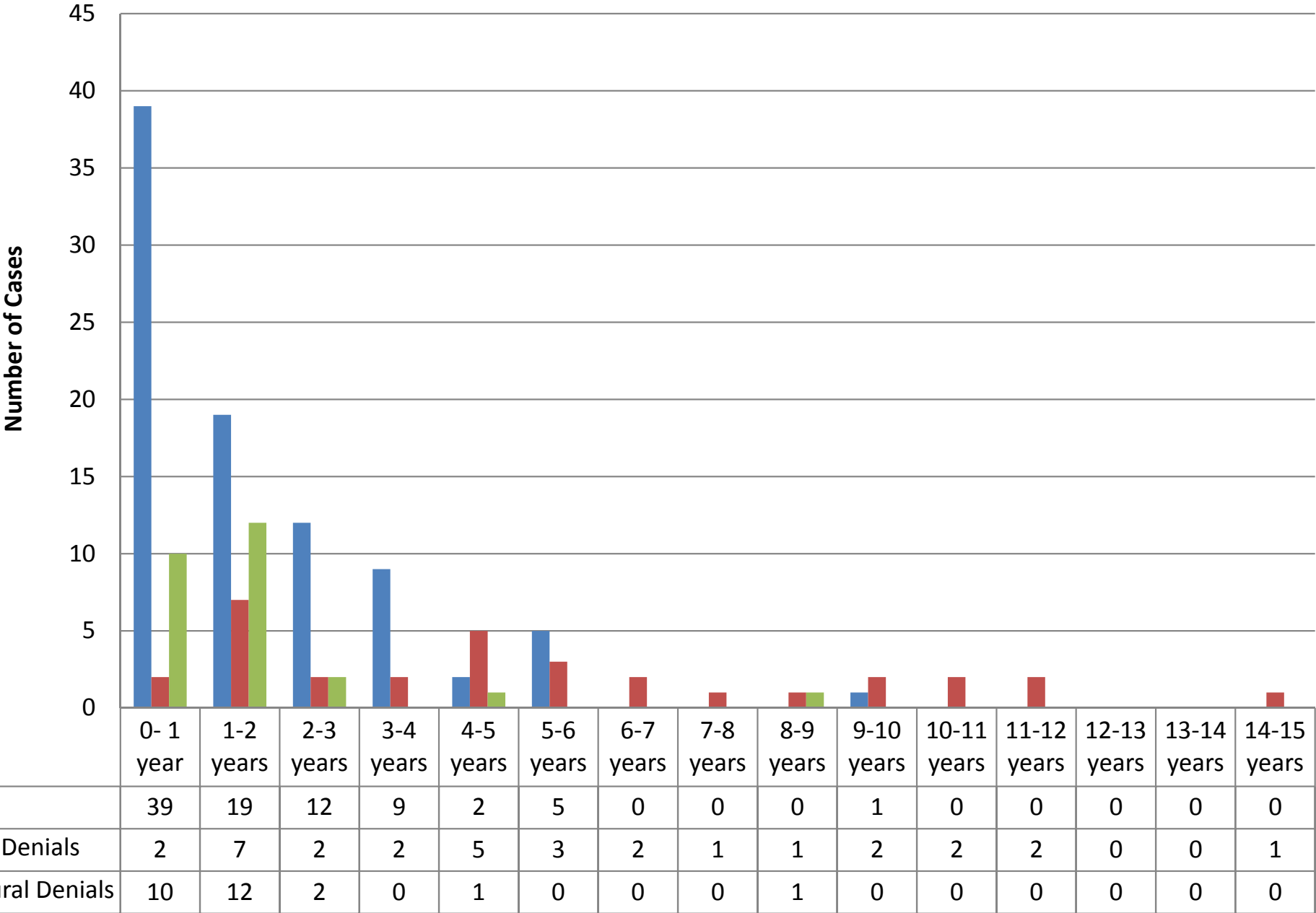
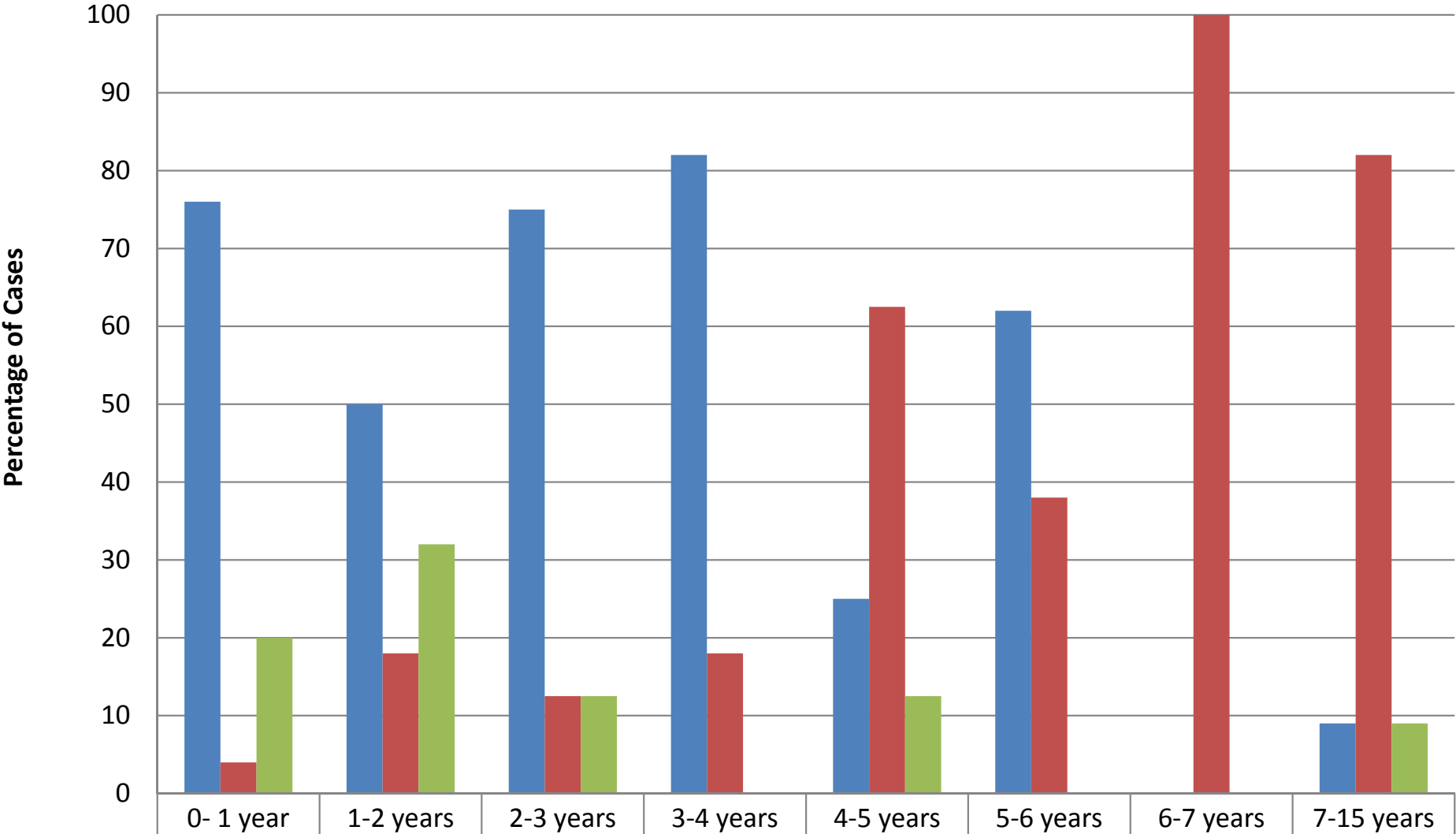
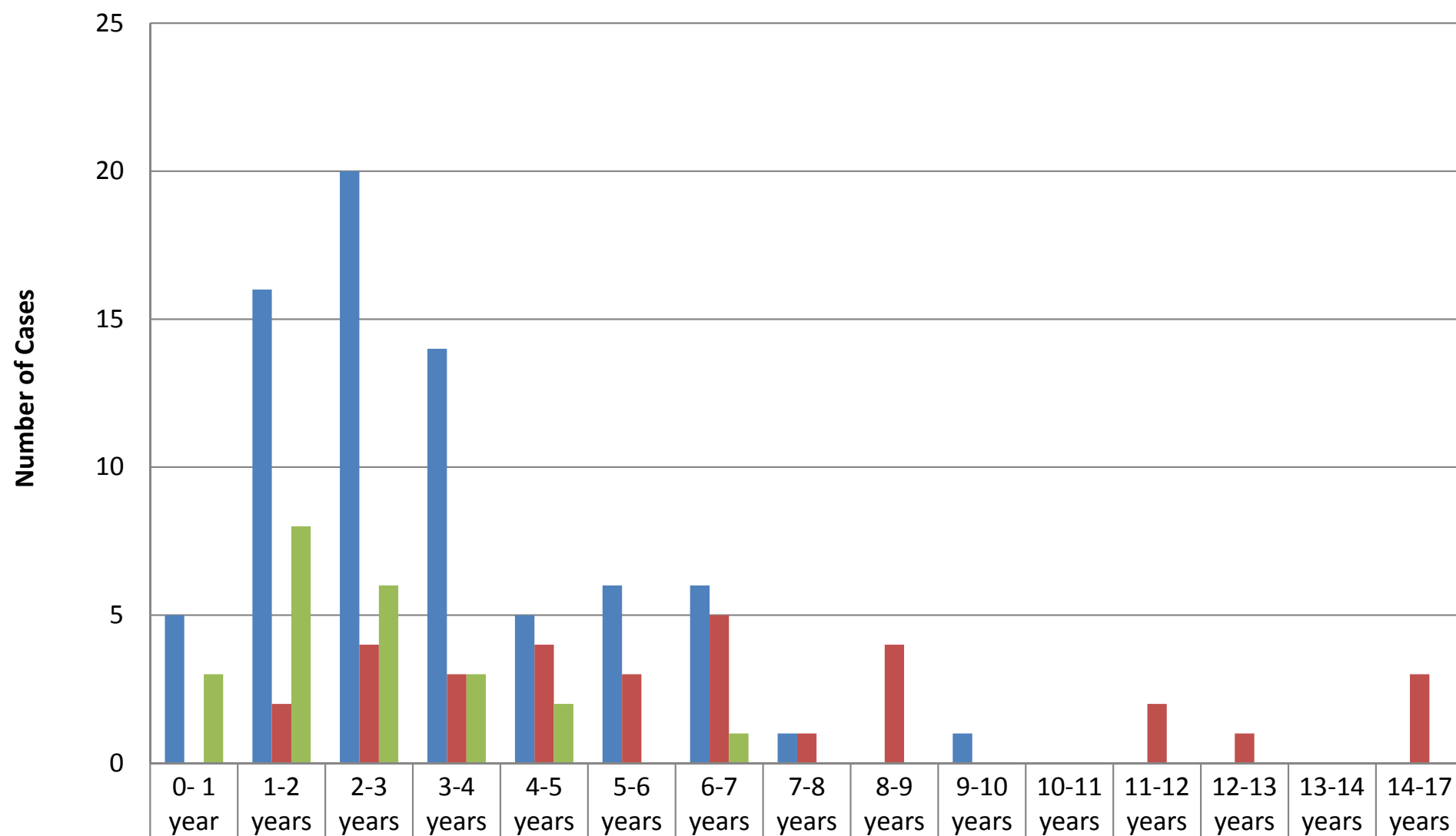


Figure 2. Length of Delay and Outcomes by Year from Finality of Conviction
Percentage of Cases



% Merits Denials	76	50	75	82	25	62	0	9
% Clark/Robbins Denials	4	18	12.5	18	62.5	38	100	82
% Other Procedural Denials	20	32	12.5	0	12.5	0	0	9

Figure 3. Length of Delay and Outcomes by Year from Entry of Judgment



 # Merits Denials	5	16	20	14	5	6	6	1	0	1	0	0	0	0	0
 # Clark/Robbins Denials	0	2	4	3	4	3	5	1	4	0	0	2	1	0	3
 # Other Procedural Denials	3	8	6	3	2	0	1	0	0	0	0	0	0	0	0

Figure 4. Length of Delay and Outcomes by Year from Entry of Judgment
Percentage of Cases

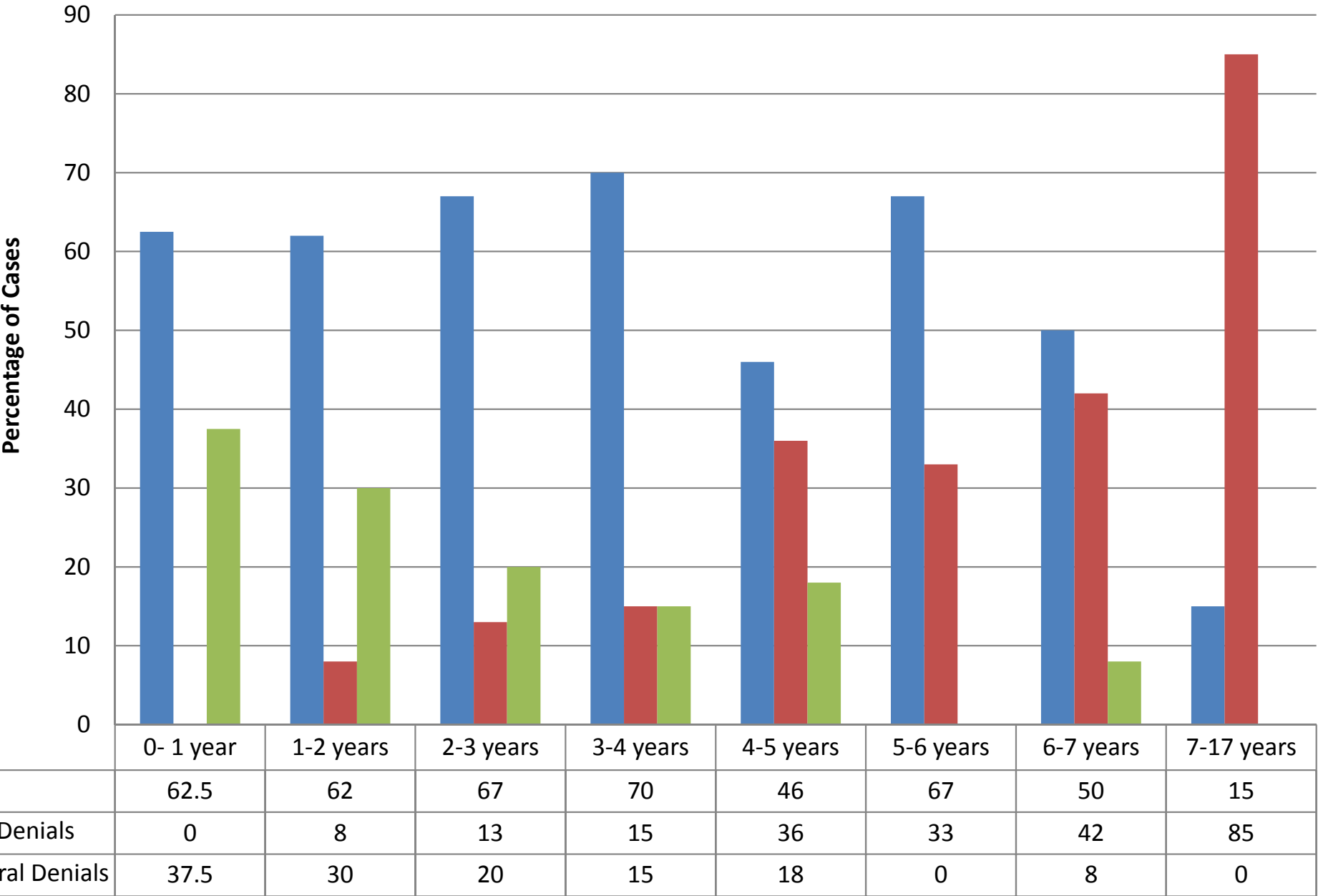
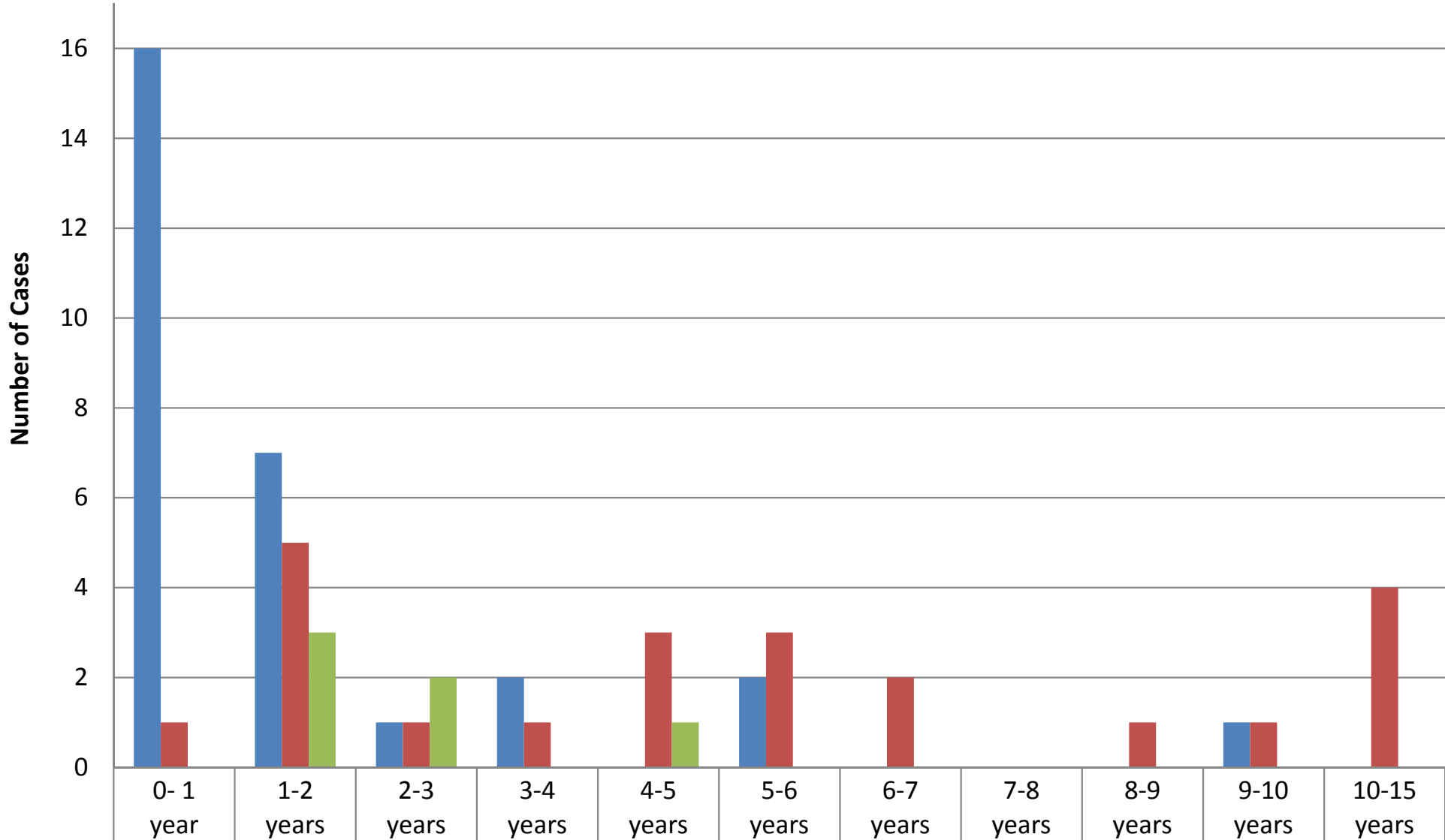
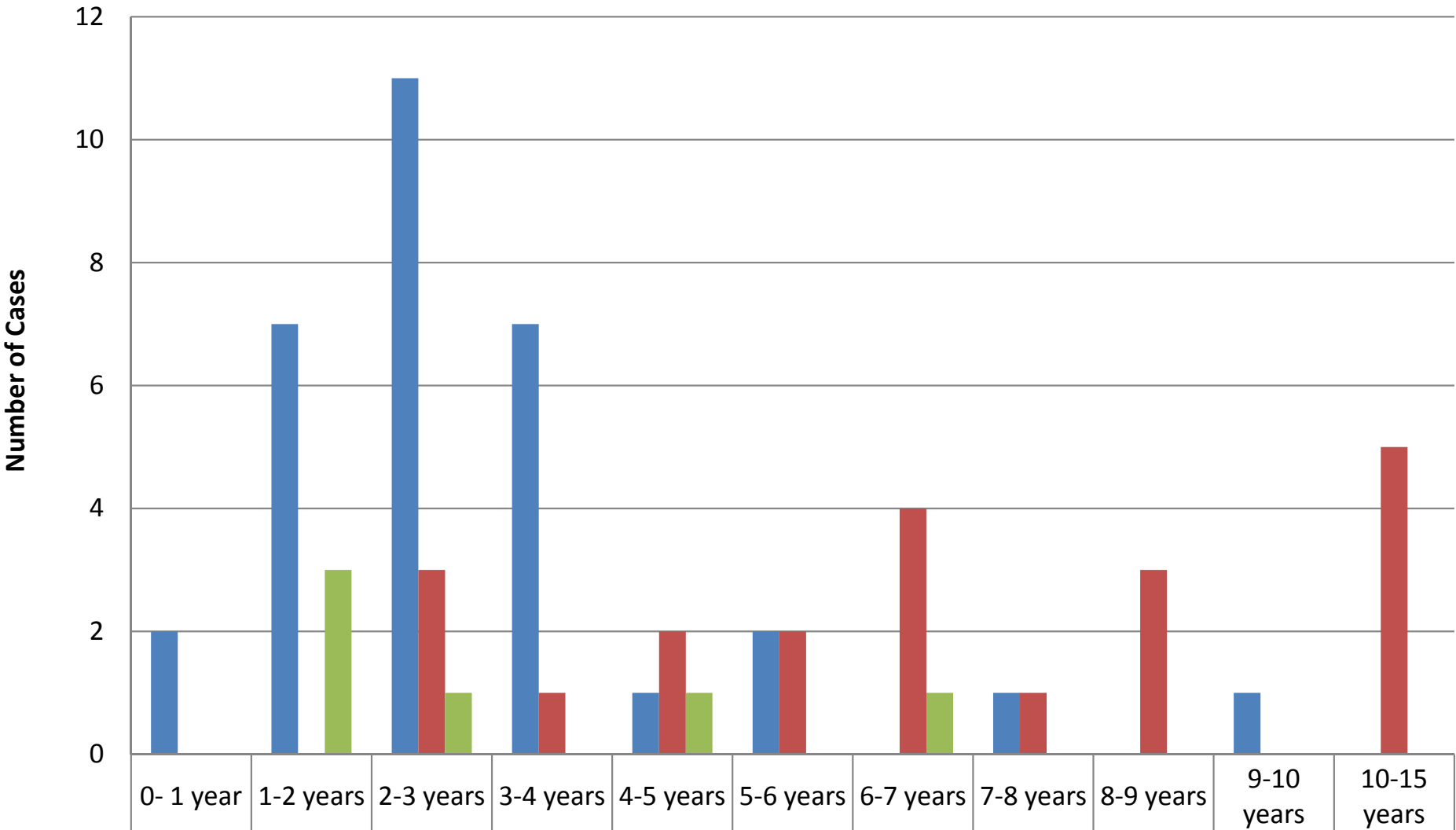


Figure 5. Petitions Raising Ineffective Assistance of Counsel Claims:
Length of Delay and Outcomes from Finality of Conviction
Number of Cases



# Merits Denials	16	7	1	2	0	2	0	0	0	1	0
# Clark/Robbins Denials	1	5	1	1	3	3	2	0	1	1	4
# Other Procedural Denials	0	3	2	0	1	0	0	0	0	0	0

**Figure 6. Petitions Raising Ineffective Assistance of Counsel Claims:
Length of Delay and Outcomes by Year from Entry of Judgment
Number of Cases**



# Merits Denials	2	7	11	7	1	2	0	1	0	1	0
# Clark/Robbins Denials	0	0	3	1	2	2	4	1	3	0	5
# Other Procedural Denials	0	3	1	0	1	0	1	0	0	0	0

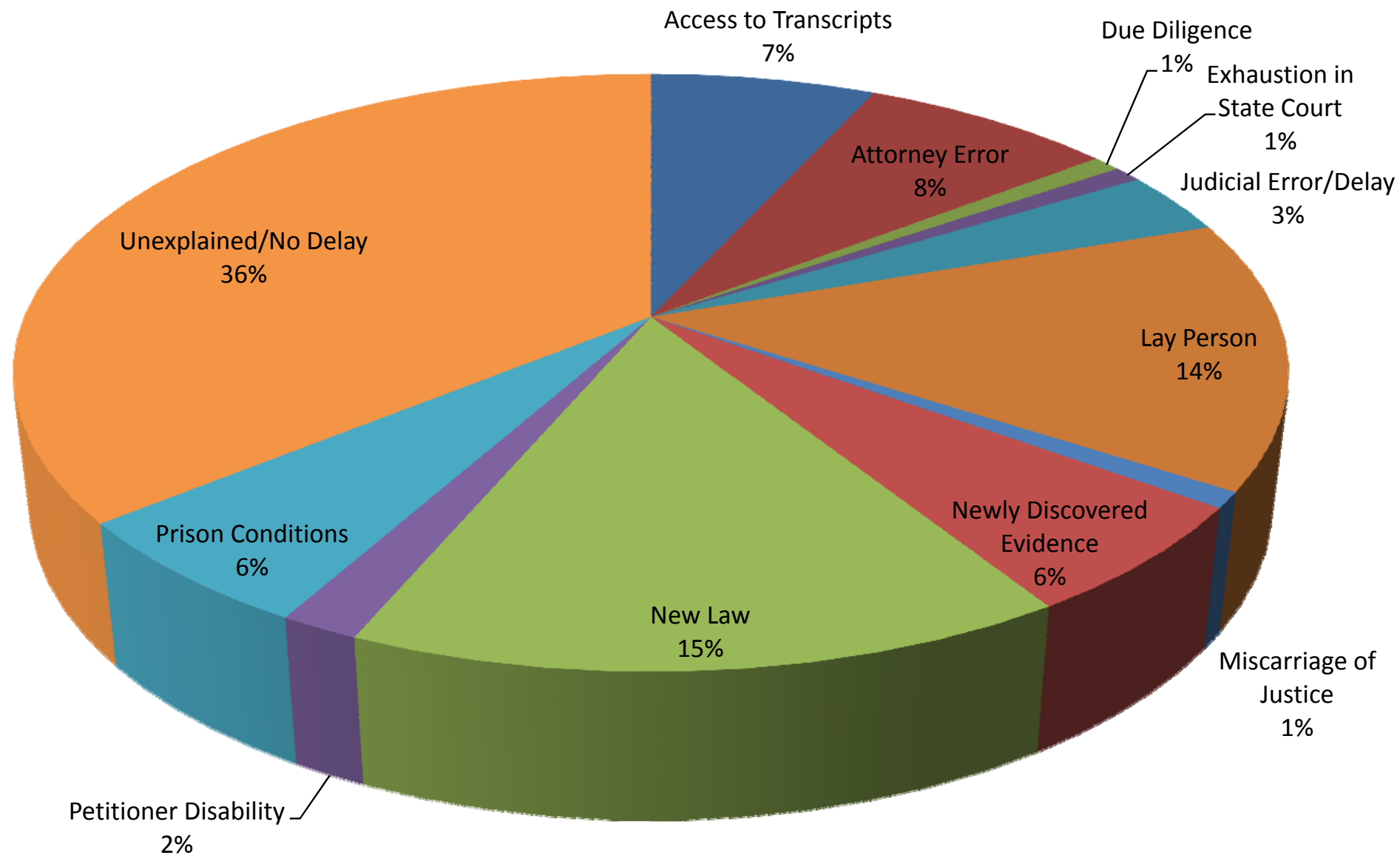
Figure 7. Justifications for Delay in Merits Denials

Figure 8. Justifications for Delay in *Clark/Robbins* Denials